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Draft ILO Guidelines for the promotion of fundamental principles and rights at work and the prevention and elimination of violence and harassment for professional athletes

Report for the Meeting of Experts on the application of the fundamental principles and rights at work and on violence and harassment in the world of sport
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▶ Contents

Page

1. Introduction 5
2. Scope 5
3. Intended users 6
4. General principles 7
   4.1. Particularities of sport (“the sporting exception”) 7
   4.2. Fundamental principles and rights at work 7
   4.3. Social dialogue 8
   4.4. Sport integrity 8
   4.5. Effective remedy 9
   4.6. Data and knowledge sharing 9
   4.7. Other general principles 9
5. Ensuring freedom of association and the effective recognition of the right to collective bargaining 10
6. Elimination of all forms of forced or compulsory labour 11
7. Abolition of child labour 13
8. Promoting equality and non-discrimination 15
   8.1. General principles 15
   8.2. Gender equality 15
   8.3. Racism, sexism and other forms of discrimination 16
   8.4. Disability and sport 18
   8.5. Actions for constituents 18
9. A safe and healthy working environment 19
10. Prevention and elimination of violence and harassment for professional athletes 22
11. Follow-up to the Guidelines 23

▶ 1. Introduction

1. ILO sectoral guidelines are reference tools setting out principles that can be reflected in the design and implementation of policies, strategies, programmes, legislation, administrative measures and social dialogue mechanisms in particular economic sectors or sectoral clusters. They can be implemented progressively to take into account different national settings, cultures and social, economic, environmental and political contexts.

2. ILO sectoral guidelines are adopted by meetings of experts nominated by governments, employers and workers. Experts serve in their personal capacity and act and speak in their expert capacity. Sectoral guidelines adopted at meetings of experts are submitted to the ILO Governing Body for approval.

3. Sectoral guidelines draw their principles from international labour standards (Conventions, Protocols and Recommendations) and other sources, including Declarations, codes of practice and other policy guidance adopted and endorsed by the International Labour Conference or the Governing Body. They also draw on other international agreements and policies in the sector concerned, as well as relevant trends and developments in regional and national law and practice. Sectoral guidelines are based on the full principles, rights and obligations set out in international labour standards; nothing set out in sectoral guidelines should be interpreted as lowering such standards.

4. Sectoral guidelines are not legally binding. They are not subject to ratification or ILO supervisory mechanisms. Sectoral guidelines can therefore be aspirational in scope, expand on principles laid down in international labour standards and other international agreements and policy and be adapted to different national systems and circumstances.

▶ 2. Scope

5. This document provides guidance for ILO constituents on the respect, promotion and realization, in relation to professional athletes, of fundamental principles and rights at work, as set out in the ILO Declaration on Fundamental Principles and Rights at Work, adopted in 1998 and amended in 2022, and related fundamental international labour standards. [1]

6. The Guidelines also set out principles regarding the prevention and elimination, with regard to athletes, of violence and harassment, including gender-based violence and harassment, in line with the Violence and Harassment Convention (No. 190) and Recommendation (No. 206), 2019.

7. These Guidelines apply to professional athletes, hereafter referred to as “athletes”. For the purposes of these Guidelines, a professional athlete is considered as a worker who gains income through competitive sport and whose activities are controlled by a sports organization or an

[1] Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87); Right to Organise and Collective Bargaining Convention, 1949 (No. 98); Forced Labour Convention, 1930 (No. 29) (and its 2014 Protocol); Abolition of Forced Labour Convention, 1957 (No. 105); Minimum Age Convention, 1973 (No. 138); Worst Forms of Child Labour Convention, 1999 (No. 182); Equal Remuneration Convention, 1951 (No. 100); Discrimination (Employment and Occupation) Convention, 1958 (No. 111); Occupational Safety and Health Convention, 1981 (No. 155); Promotional Framework for Occupational Safety and Health Convention, 2006 (No. 187).

employer. This general description includes athletes that compete as employees or as contract players, and athletes who compete on an individual basis in competitions. It covers formal and informal settings. It covers athletes whose only activity is sport as well as those who may have other jobs but who spend a significant amount of time training and competing in sports competitions. The Guidelines can also guide policies in relation to other categories of athletes, as appropriate, including those attached for competitive reasons to military or police structures or education programmes.

8. The Guidelines cover all types of sports, including team and individual sports, traditional and indigenous sports, sports for persons with disabilities and, as appropriate, other organized competitive activities which involve professional players.

▶ 3. Intended users

9. The intended users of the Guidelines are:

(a) governments, including ministries of labour, sport, culture, education, women and youth, as well as relevant local authorities;

(b) employers' organizations and employers, including sports employers, such as clubs or leagues, or other sports bodies that directly engage athletes;

(c) workers' organizations, including athletes' unions.

10. Other relevant actors that can draw on principles from the Guidelines, as appropriate, include:

(a) sports governance bodies;

(b) sporting event organizing bodies;

(c) athletes' commissions;

(d) international and regional organizations;

(e) civil society organizations;

(f) journalists and human rights defenders;

(g) fan organizations;

(h) enterprises involved in sport;

(i) sponsors;

(j) individual athletes;

(k) sports officials;

(l) athlete support personnel such as managers, agents, trainers, coaches, medical staff, lawyers;

(m) amateur athlete organizations.

▶ 4. General principles

11. The practice of sport is considered a human right, linked to the right to health and well-being and participation in the cultural life of the community. All persons should enjoy equal opportunities and treatment in accessing participation and employment in sport, free from discrimination of any kind. The respect, promotion and realization of fundamental principles and rights at work and the prevention and elimination of violence and harassment for professional athletes depend on a culture of sport which aims to promote equality, health, social and economic development, reconciliation and peace, and which is based on the values of fair play, equality, honesty, excellence, commitment, courage, teamwork, respect for rules and laws, respect for self and others, community spirit and solidarity, as well as fun and enjoyment, in line with the International Charter of Physical Education, Physical Activity and Sport, 2015.

12. Professional sport is an important economic activity that has contributed to economic growth and created opportunities for enterprises and business development, as well as employment and income generation. Sport, overall, is a key enabler for the achievement of the 2030 Agenda for Sustainable Development, and it is an important contributor to social justice.

13. Professional athletes are workers. The protection of, and respect for, their human and labour rights should be recognized by domestic legislation and embedded within the governance and operations of sport, and in the policies, systems and practices of professional sport.

4.1. Particularities of sport ("the sporting exception")

14. The "autonomy" or "specificity" of sport supports the right of sports organizations to independently organize and regulate sporting activities, competitions and their internal affairs, provided this is done in line with applicable laws, and grounded in principles of good governance, transparency, and inclusiveness. It should not provide a basis to undermine the promotion of fundamental principles and rights at work and the prevention and elimination of violence and harassment in the sector.

15. The working conditions of athletes, including their access to social protection and social security, vary across regions and sports disciplines, between team and individual sports, and between different types of employment relationships. Policies to address the working conditions of athletes should be innovative and adapted to different situations.

4.2. Fundamental principles and rights at work

16. The ILO Declaration on Fundamental Principles and Rights at Work, adopted in 1998 and amended in 2022, affirms the obligation, inherent in membership of the ILO, to respect, to promote and to realize the principles concerning the fundamental rights, namely:

(a) freedom of association and the effective recognition of the right to collective bargaining;

(b) the elimination of all forms of forced or compulsory labour;

(c) the effective abolition of child labour;

(d) the elimination of discrimination in respect of employment and occupation;

(e) a safe and healthy working environment.

17. Fundamental principles and rights at work apply to all workers, including professional athletes, regardless of their classification of status in employment.

18. Governments have the duty to adopt, implement and effectively enforce national laws and regulations to ensure that the fundamental principles and rights at work are respected, promoted and realized. The effective realization of these fundamental principles and rights at work is a key basis for guaranteeing other labour rights, particularly those expressed in other ratified ILO Conventions applicable to professional athletes, in accordance with the scope of these instruments.

4.3. Social dialogue

19. The governance of the labour aspects of professional sport should be based on social dialogue. Social dialogue is grounded in respect for freedom of association and the effective recognition of the right to collective bargaining. Social dialogue has diverse forms and levels depending on the contexts and traditions of each country. Consultations, exchanges of information, workplace cooperation and other forms of dialogue between social partners and with governments and other stakeholders are also important.

20. Governments should ensure that their laws and practices fully recognize the rights of employers in the sport sector, as well as the rights of professional athletes to organize and engage in voluntary collective bargaining.

21. Governments and employers' and workers' organizations should promote all forms of effective social dialogue to advance decent work in sport, including through collective bargaining, at enterprise, national, regional and global levels, as appropriate. As sport varies greatly across regions and disciplines, social dialogue should be promoted through innovative approaches.

4.4. Sport integrity

22. The respect for fundamental principles and rights at work in sport, and the growth and sustainability of the sport sector, depend on a foundation of sport integrity. At the same time, respect for fundamental principles and rights at work of athletes and the prevention and elimination of violence and harassment for professional athletes are essential for promoting sport integrity and preventing corruption, doping, manipulation of competition results, and organized crime.

23. Every athlete should respect the integrity of sport by not doping and not manipulating competitions. At the same time, governments, social partners, and other relevant actors share the responsibility of upholding integrity by ensuring fair, transparent, and rights-respecting systems of prevention, detection, and enforcement.

24. To strengthen the integrity of sport, ILO constituents with relevant actors should:

(a) engage in effective social dialogue to develop and foster a culture of respect for rights, transparency, accountability, and zero tolerance of corruption and wrongdoing in the sport sector;

(b) take active measures that promote and protect the impartiality of the sport and protect sport sector workers, including persons working in sport sector governance and oversight and rule enforcement bodies, from undue influence including through anti-corruption measures and whistle-blower protection legislation and policies;

(c) put in place a policy environment and measures to combat corruption and to protect whistle-blowers and all sport sector workers against any form of retaliation, violence and harassment linked to the disclosure of wrongdoing.

4.5. Effective remedy

25. The promotion of fundamental principles and rights at work and the prevention and elimination of violence and harassment for professional athletes is linked to effective labour dispute prevention and resolution mechanisms within and outside the sport sector. Complaint and appeals mechanisms can be both judicial and non-judicial institutions, and should be based on the principles of efficiency, speediness, accessibility, fairness, equality, accountability, independence, impartiality, professionalism and enforcement, as set out in the ILO's diagnostic tool for self-assessing the effectiveness of labour dispute prevention and resolution. For non-judicial institutions, further principles of voluntarism, confidentiality and prevention should be respected.

26. As part of their duty to protect the labour rights of athletes, governments should take appropriate steps to ensure, through judicial, administrative, legislative or other appropriate means, that when non-respect of labour rights occur within their territory and/or jurisdiction, any affected athlete has access to effective remedy.

27. Remedy mechanisms should ensure that any athlete, whether acting individually or jointly with other athletes, who considers that they have grounds for a grievance, should have the right to submit such grievance without suffering any prejudice whatsoever as a result, and to have such grievance examined pursuant to an appropriate procedure.

4.6. Data and knowledge sharing

28. Lessons learned with regard to labour and human rights in the governance and delivery of sport, including throughout the sporting event life cycle, should be captured, disclosed and shared in a transparent manner to develop appropriate standards and continuously improve good practices.

29. Governments, in collaboration with employers' and workers' organizations, should strengthen institutions and systems for collecting data on employment and working conditions in sport.

4.7. Other general principles

30. The promotion of fundamental principles and rights at work and the prevention and elimination of violence and harassment for professional athletes also depends also on a number of other principles related to the rights and responsibilities of professional athletes. These include:

(a) **Data protection.** Athletes should enjoy a right to a private life, privacy and protection in relation to the collection, storage and transfer of personal data.

(b) **Image rights.** Athletes should enjoy protection of name, image and performance. An athlete's name, image and performance should only be commercially utilized with their consent, voluntarily given.

(c) **Freedom of expression.** Every athlete should enjoy the right to freedom of opinion and expression, while respecting the rules of competitions and the rights of others involved in sport. Any restrictions on expression of opinion in the context of sporting events should be determined through social dialogue.

(d) **Equality before the law.** Every athlete should enjoy the right to the protection of the law and equality before it.

(e) **Due process.** Every athlete should be entitled to due process with regard to sport discipline matters, including the presumption of innocence. Any penalty must be lawful, proportionate and just.

(f) **Duty of respect.** Every athlete should respect the rights of fellow athletes, employers, sports officials and everyone involved with or affected by sport.

▶ 5. Ensuring freedom of association and the effective recognition of the right to collective bargaining

31. The fundamental rights to freedom of association and the effective recognition of the right to collective bargaining are enshrined in the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87), and the Right to Organise and Collective Bargaining Convention, 1949 (No. 98).

32. All athletes, regardless of their classification of status in employment, and sports employers should have the right to establish and, subject only to the rules of the organization concerned, to join organizations of their own choosing without previous authorization, at the national, regional and global levels, as appropriate.

33. Athletes should have the right to enter into voluntary collective negotiation of the terms and conditions upon which they are involved in sport and to be represented by organizations of their choosing in those negotiations.

34. Free, independent, strong and representative employers' and workers' organizations, together with trust, commitment and respect by the governments for the autonomy of the social partners are key conditions for effective social dialogue in sport and respect for fundamental principles and rights at work.

35. Part-time and seasonal athletes should also enjoy rights of freedom of association and the effective recognition to the right of collective bargaining.

36. All athletes should be protected against acts of anti-union discrimination in respect of their work, including acts intended to make their work as athletes contingent upon not joining or relinquishing membership in a trade union.

37. Sports employers, athletes and their organizations should enjoy adequate protection against any acts of interference by each other or each other's agents or members in their establishment, functioning or administration, as well as acts which are designed to promote the establishment of workers' organizations under the domination of employers or employers' organizations, or to support workers' organizations by financial or other means, with the object of placing such organizations under the control of employers or employers' organizations.

38. Social dialogue platforms at national, regional or global level can be beneficial for sustained dialogue and advance effective implementation of labour rights. Global labour agreements can play an important role in addressing overarching labour concerns in specific sports.

39. To ensure freedom of association and the effective recognition of the right to collective bargaining for athletes, governments, in consultation with employers' and workers' organizations, should:

(a) ratify and effectively implement fundamental and other ILO instruments relating to freedom of association and collective bargaining. This would entail establishing national laws or adapting existing laws to the needs of athletes, in line with applicable international labour standards;

(b) establish adequate machinery, including through the responsible authority and labour inspectorate, to guarantee the effective application and enforcement of laws relating to freedom of association, the right to organize and the right to collective bargaining;

(c) formulate and implement measures supporting the establishment, growth and functioning of employers' and workers' organizations in the sport sector;

(d) adopt legislative provisions or policies to ensure that athletes competing in educational, police or military settings, for the purpose of sport, can also enjoy freedom of association, in relation to sport work;

(e) take appropriate measures to encourage and promote the full development and utilization of machinery for voluntary negotiation between employers or employers' organizations and workers' organizations.

40. Employers and their organizations should:

(a) establish environments where there is a respect for freedom of association and the effective recognition of the right to collective bargaining;

(b) build their organizations and engagement in sport labour matters at national, regional and global levels, including promoting and educating members about the importance of social dialogue.

41. Workers' organizations should:

(a) promote athletes' education and training, including on the benefits of collective bargaining and their rights and obligations;

(b) strengthen outreach efforts to migrant athletes, in particular women and youth, in order to promote their organization and raise awareness about their rights and obligations within national law. This could be supported by transnational collaboration between trade unions and civil society organizations in countries of origin and destination.

▶ 6. Elimination of all forms of forced or compulsory labour

42. The Forced Labour Convention, 1930 (No. 29), and its 2014 Protocol, as well as the Abolition of Forced Labour Convention, 1957 (No. 105), provide the international legal framework for protecting athletes from forced labour.

43. Every athlete should have the free choice of employment as an athlete and to move freely in pursuit of that work and employment.

44. Athletes may be bound to provisions preventing them from changing employer or competing in certain events. Such provisions can promote fair competition and protect athletes, clubs and sport federations from disruptive recruitment practices. Governments and social partners should develop such policies through social dialogue to prevent any practice that may result in undue constraints on free labour, including excessive periods of transfer restriction or related penalties (including transfer fees, compensation, suspensions, excessive or isolated training requirements, or registration bans).

45. Athletes can also face risks of forced labour, including human trafficking, in relation to migration, migration of persons under 18 years of age, and in relation to change of national allegiance.

46. To address athletes' risks of forced labour in the sport sector, key good practices include implementing regulatory safeguards in transfer systems and changes of national allegiance and fostering collaborative efforts among key actors to tackle forced labour in the sector. Although the rules governing the professional transfer of athletes or their ability to compete in different leagues are generally established by sports governance bodies, these rules should comply with national and international laws and be the outcome of social dialogue and global policy coherence.

47. Rules for transfers of country allegiance should include review mechanisms to assess applications, proof that transferring athletes receive full citizens' rights in their new country and set out a minimum age requirement for transfers of allegiance.

48. International club or team transfers should be regulated for athletes under 18 years of age. Minors that are transferred should be afforded full child safeguarding as set out in the section below on child labour.

49. Isolated or excessive training as retaliation or disciplinary measures for athletes, in particular in relation to an athlete exercising their fundamental principles and right at work, should be prohibited.

50. In giving effect to their responsibility to address the challenge of forced labour of athletes, governments, in consultation with employers' and workers' organizations, should:

(a) develop an integrated and gender-sensitive approach combining employment-related and other social measures for prevention of forced labour and trafficking in sport together with law enforcement and prosecution agencies;

(b) strengthen laws and policies regarding transfer commissions and related transparency;

(c) reinforce the independence and effective capacity of judiciaries and law enforcement officials, including labour inspectors, to identify, investigate and follow up on cases of forced labour including through training and the development of specific mechanisms in relation to sports academies and institutions dealing with minors, and in relation to athletes competing in international competitions;

(d) improve governance for fair recruitment to ensure the protection of athletes against fraudulent practices and abuses during recruitment within their territory and/or jurisdiction by third parties.

51. Employers and their organizations should:

(a) educate and inform employers in the sector on the prevention of forced labour;

(b) promote fair recruitment practices, including through assessments of recruitment procedures as outlined in the ILO's *General principles and operational guidelines for fair recruitment*. This includes, inter alia, providing athletes, including those from local communities, with clear and transparent written employment contracts containing all significant conditions of employment in a language that they understand and ensuring access to effective grievance and dispute resolution mechanisms;

(c) raise awareness to ensure that that no recruitment fees or related costs are charged to or otherwise borne by athletes, that no identity and travel documents are confiscated or destroyed, and that all workers, particularly migrant workers, enjoy the right to leave or change employment and return to their countries of origin.

52. Workers' organizations should:

(a) raise awareness of their members on the elimination of forced labour in the sector;

(b) provide training and awareness on sport recruitment practices, including fraudulent and abusive practices and fake recruiting agents, in particular in sending countries of sport migrants.

▶ 7. Abolition of child labour

53. The Minimum Age Convention, 1973 (No. 138), and the Worst Forms of Child Labour Convention, 1999 (No. 182), are the primary ILO instruments for preventing child labour and safeguarding child athletes. The United Nations Convention on the Rights of the Child also offers a vital human rights perspective to the application of international labour standards.

54. Sport is a positive element in child development. Children's participation in professional sport can be safe with proper precautions. Factors such as early specialization, rigorous training, competitive pressure and power imbalances in relation to coaches, trainers and other adults can expose young athletes to occupational safety and health (OSH) risks, violence and harassment, injury, deprivation of educational opportunities, as well as situations of child labour.

55. Types of professional sport which are likely to harm the health, safety or morals of a child athlete may constitute a worst form of child labour.

56. Children's rights in sport require special protection. The best interests of the child should be the guiding principle for the involvement of children in sport.

57. Children and young athletes also require special protection from violence and harassment and from injuries and illness resulting from sport, including protection of mental well-being. Such protection is especially important for minors who are away from their home or who are migrants.

58. While a number of international guidelines regarding children in professional sport exist, they do not always follow identical approaches or standardized terminology. Constituents should work with relevant institutions to ensure that international guidance on the protection of children is coherent and effective.

59. Proper vetting and training of coaches, personal trainers, intermediaries, club staff and other employees, workers and agents who work with children is essential to safeguard children in sport, including through:

(a) contractual provisions that adhere to relevant national, regional, and international standards and principles;

(b) effective licensing systems which include minimum requirements in relation to specific skills, training, criminal background checks and psychological evaluation.

60. Professional sports academies should ensure appropriate education for students which develops their sporting excellence but also prepares them for active labour market participation after a sport career.

61. Sports employers and sports organizations, in cooperation with sports academies and centres of excellence, should provide tailored educational programmes for child athletes that inform them of their rights, the opportunities and challenges associated with a sporting career, the importance of education and social protection, integrity in sport, protection against violence and harassment,

including online harassment, image rights, OSH, and responsible use of technologies and social media.

62. All sports organizations dealing with children should, in consultation with governments, social partners and relevant stakeholders, develop safeguarding policies and procedures specific to children. Such policies should set out in a clear and understandable manner the organization's understanding and definitions of all forms of harm to children and the organization's commitment to safeguarding children in all aspects of its work and be endorsed by the highest level of the organization. These policies should also establish effective reporting and remedy mechanisms.

63. Governments, in consultation with employers' and workers' organizations, should:

(a) ratify and effectively implement the Minimum Age Convention, 1973 (No. 138), and the Worst Forms of Child Labour Convention, 1999 (No. 182);

(b) develop, through tripartite consultation, national policies, strategies and plans of action to eradicate child labour in sport and provide safeguarding for child athletes, with measurable outcomes and monitoring and evaluation frameworks, and strengthened interministerial coordination and institutional capacities, including with regard to education and law enforcement;

(c) in consultation with social partners and relevant stakeholders, set out minimum age and safety requirements for sport, in particular those that involve hard physical contact, long hours of play, play exposed to natural elements, or extensive travel;

(d) determine, through social dialogue, which types of sport are likely to harm the health, safety or morals of a child, and set the minimum age for participation accordingly;

(e) ensure the appropriate regulation of sports governance bodies, institutions and academies with regard to protection of children;

(f) regulate transfer systems in sport, in particular involving cross-border recruitment of minors under 18 years of age;

(g) promote awareness of rights of child athletes, including the dangers of false recruitment agents and risks related to international migration for sport;

(h) strengthen labour inspection and other social inspection services to include sports organizations and academies, in particular with a view to detecting situations of child labour.

64. Employers and their organizations should:

(a) raise awareness of their members of child labour and safeguarding in sport;

(b) support efforts to eradicate child labour in sport and cooperate with relevant authorities and services on the prevention and elimination of child labour.

65. Workers' organizations should:

(a) raise awareness of their members and supporting efforts to eradicate child labour in sport;

(b) ensure that child athletes and their parents/guardians are informed on their rights and of the mechanisms available to them to assert these rights.

▶ 8. Promoting equality and non-discrimination

8.1. General principles

66. Athletes' right to non-discrimination in employment and occupation is protected by the Equal Remuneration Convention, 1951 (No. 100), and the Discrimination (Employment and Occupation) Convention, 1958 (No. 111). Violence and harassment related to discrimination are addressed by the Violence and Harassment Convention (No. 190) and Recommendation (No. 206), 2019 (see also section 10 below).

67. Every athlete should be entitled to equality of opportunity and treatment in employment and occupation (including access to vocational training, access to employment and to particular occupations, and terms and conditions of employment) and be free from discrimination, and from discriminatory harassment and violence. An athlete's right to pursue sport should not be limited on the basis of race, colour, religion, sex, political opinion, national extraction or social origin, or any other ground determined in accordance with Convention No. 111 or applicable international labour standards and international human rights instruments.

8.2. Gender equality

68. Governments should provide equal terms and conditions of work for female athletes, including through establishing strategies and policies that promote gender equality and related monitoring, evaluation and accountability, and further enhancing the business case for gender equality in sport and investment in women's sport.

69. Sports governance bodies and employers should ensure the application to all athletes of the principle of equal remuneration for men and women athletes for work of equal value, including in relation to prize money, image rights, promotional fees and benefits.

70. In determining whether women's and men's professional athletic work is of equal value, objective job evaluation methods should be used that are free from gender bias and that take into account objective factors such as skills, effort, responsibility and working conditions. Consideration should be given to a totality of factors, including sport performance, market value, growth potential, and contribution to social development, including the promotion of gender equality and inclusion.

71. Constituents should take steps to advance the implementation of gender equality by:

(a) researching existing disparities in remuneration and terms and conditions of work between men and women in the sport sector;

(b) recognizing the right of women professional athletes to organize and collectively bargain and by building their capacity to do so;

(c) collaborating to create a strategic vision for women's sport, including the economic development of women's sport;

(d) promoting the equal representation of women in decision-making roles in sports organizations;

(e) addressing gender stereotypes and cultural barriers to the acceptance of women's professional sport and gender equality, especially through education, awareness-raising and effective social dialogue.

72. Efforts to close the gap in investment in women's sport and promote equal economic opportunities for women and girls can include:

(a) increased investments in the development of women's sport;

(b) increased support to equalize training and playing conditions for women and men;

(c) targets for equal pay in prize money;

(d) increased opportunities for women athletes to benefit from sponsorships;

(e) expanded post-competition career opportunities through mentorship and support to career transition for female athletes;

(f) undertaking efforts to support equal opportunities for girls in amateur sport, physical activity and physical education, as a means of growing women's professional sport.

73. Gender identity, expression and/or sex variance can be an important issue in sport. Constituents should adopt approaches which allow all persons, regardless of their gender, to participate in sport safely and without prejudice. Criteria should be developed through social dialogue and consultation with all relevant stakeholders having due regard to health and safety, dignity, bodily autonomy, and the right to privacy.

74. Gender equality for athletes also requires adequate maternity protection and parental leave, in line with the Maternity Protection Convention, 2000 (No. 183).

75. Measures to promote maternity protection and family leave for athletes can include:

(a) protection of contracts in relation to pregnancy, adoption, or taking of maternity, adoption or family leave;

(b) right to return to sport after maternity leave and, where applicable, preservation of sport rankings;

(c) provision of additional leave before or after the maternity leave period in the case of illness, complications or risk of complications arising out of pregnancy or childbirth;

(d) where appropriate, 14 weeks of paid maternity leave, with at least 6 weeks after the child is born;

(e) provision of alternative work should an athlete decide to stop training or competing due to maternity;

(f) medical and social support after the athlete returns to work;

(g) regular breaks and dedicated space in training and competition venues to allow for breast feeding.

8.3. Racism, sexism and other forms of discrimination

76. Athletes can be exposed to various forms of discrimination and related violence and harassment during sporting activities and related travel and social events. Online discriminatory violence and harassment is increasingly prevalent across social media.

77. Anti-discrimination measures should be based on principles of international labour standards and human rights. They should be centred on supporting the needs of the affected persons and respond to any trauma experienced. Measures should also be independent and accountable, safe and accessible, rooted in meaningful stakeholder engagement and provide access to effective

remedy. They should also fulfil five key functions: prevention, support, reporting, investigation, and remedy.

78. Prevention strategies can include:

(a) promoting a zero-tolerance culture to discrimination and unequal treatment, including statements indicating a club, team or sporting event will not tolerate discrimination;

(b) adding conditions to tickets for spectators not to engage in discrimination;

(c) taking action to prevent the display of discriminatory slogans and banners inside a venue;

(d) taking disciplinary action against athletes who engage in discrimination;

(e) encouraging a common strategy between clubs, teams and security personnel;

(f) engaging in cooperation with social partners and other organizations such as youth clubs, civil society organizations, authorities, sponsors, local businesses and other actors to develop a common stance against discrimination;

(g) establishing appropriate, robust judicial measures against discrimination and related violence and harassment.

79. Support measures for athletes that encounter discrimination can include:

(a) providing counsellors or contacts with mental health professionals to provide support, in a language familiar to the athlete;

(b) training staff to support athletes in dealing with discrimination and unequal treatment;

(c) providing training for athletes on procedures and protocols for dealing with discrimination and unequal treatment;

(d) engaging media companies and media regulators to combat discrimination, violence and harassment on media platforms.

80. Reporting mechanisms should be established that allow athletes to report incidents. Such mechanisms should:

(a) allow both confidential and anonymous reporting;

(b) be available in languages familiar to a complainant;

(c) communicate who will handle communication with the reporting person, what measures are needed to maintain confidentiality and ensure protection, how the report will be classified for further handling, and who will carry out any related investigation.

81. When investigating an incident, measures should be taken to:

(a) safeguard the confidentiality of the reporting person, the accused person, and any witnesses, whistle-blowers and others involved;

(b) secure evidence and log investigative actions in a case file;

(c) protect persons involved, including complainants, victims, witnesses and whistle-blowers against victimization or retaliation;

(d) provide for due process.

82. Remedy mechanisms should:

(a) be adequate, effective, prompt, culturally appropriate and gender-sensitive;

(b) ensure that when wrongdoing is found, appropriate measures are taken to stop it;

(c) sanction wrongdoers as appropriate through judicial and non-judicial measures;

(d) use case data in an anonymous and confidential manner to improve sports organizations and improve reporting mechanisms and related law enforcement.

83. Constituents and relevant stakeholders should, through social dialogue, promote efforts to empower athletes, referees and officials to take a stand against discrimination during games, including racism, racial discrimination and xenophobia, and ensure that such incidents are effectively addressed. Such efforts should also aim to protect athletes, managers and match officials, as well as other spectators, from discriminatory behaviour. Measures can include removal of offenders from the venue, attendance bans, game suspension or game stoppage.

8.4. Disability and sport

84. Sports for persons with disabilities is also a growing sport sector and can benefit from greater investment, promotion and social dialogue. Measures that could be taken to promote and further develop sports for persons with disabilities include:

(a) encouraging persons with disabilities, though organizations of persons with disabilities, employers' organizations or workers' organizations, to contribute directly to the development of sport policies that concern them;

(b) promoting professional sports for persons with disabilities, including through the broadcasting of related sporting events;

(c) recognizing that athletes with disabilities require special protection with regard to discrimination, as well as the prevention and elimination of violence and harassment.

8.5. Actions for constituents

85. Governments, in consultation with employers' and workers' organizations, should:

(a) promote a zero-tolerance environment for discrimination, violence and harassment, including gender-based violence and harassment, in line with the Violence and Harassment Convention (No. 190) and Recommendation (No. 206), 2019;

(b) promote adequate and equitable access to support, grants and resources for athletes or persons training to become athletes from under-represented groups;

(c) support the establishment and sound functioning of childcare and long-term care, family-support services and facilities for athletes, in order to allow both women and men with family responsibilities to remain in sport;

(d) provide access to gender-responsive and inclusive universal, comprehensive, adequate and sustainable systems of social protection.

86. Employers and their organizations should:

(a) support the development and effective implementation of policies to address discrimination and violence and harassment at work, and promote diversity and inclusion, including by ensuring that such policies cover all those working in the sport sector;

(b) promote the principle that all workers, irrespective of their migration status, enjoy equal opportunities and treatment in employment and occupation;

(c) promote the participation of women and other under-represented groups in leadership positions within their sphere of influence, including by removing barriers to entry to and advancement in employment and careers and by combating gender stereotypes;

(d) promote the establishment of mechanisms for the prevention, monitoring and reporting of any incident of discrimination, violence and harassment;

(e) ensure safe, fair and effective reporting and dispute resolution mechanisms and procedures in cases of discrimination, violence and harassment and providing easy access to appropriate and effective remedies.

87. Workers' organizations should:

(a) engage in awareness-raising on rights and obligations, with a view to changing attitudes and behaviour;

(b) ensure gender equality and diversity within their organizational structures and leadership, and integrate gender equality and non-discrimination issues in their agendas;

(c) play an active role, though social dialogue, in the design, development and implementation of any prevention measures in relation to discrimination and related violence and harassment.

▶ 9. A safe and healthy working environment

88. Athletes' fundamental right to occupational safety and health (OSH) is set out by the Occupational Safety and Health Convention, 1981 (No. 155), and the Promotional Framework for Occupational Safety and Health Convention, 2006 (No. 187).

89. All athletes, regardless of their classification of status in employment or legal status, have the right to work in safe and healthy conditions. Every athlete should be provided with a safe and secure workplace and sporting environment that promotes the athlete's safety as well as their physical and mental health and well-being.

90. Athletes and their organizations should be recognized as essential partners in the implementation and promotion of measures necessary to ensure the safety and health in the workplace and sporting environment.

91. Athletes have the right to remove themselves from situations in relation to sport that they believe present an imminent and serious danger to their life or health and shall be protected from undue consequences in accordance with national conditions and practice.

92. Measures to ensure workplace and sporting safety, including personal protective equipment (PPE) and protective athletic gear, should be gender-responsive and disability-sensitive, taking into consideration different gender-related requirements, including those related to such issues as maternity protection, reproductive health and particular physiognomic vulnerabilities. PPE and other OSH measures shall not involve any expenditure for workers.

93. The provision of occupational healthcare and support services in sport should be gender-sensitive and include making available practitioners that are trained in risks and injuries specific to women

and men. Athletes should have authority and control over any treatment and support provided to them.

94. Medical information and biometric data obtained through health or training services in sport relating to an athlete should be afforded the same protection as any medical information, unless agreed to by the athlete.

95. Constituents, through social dialogue, and other relevant stakeholders should engage in joint efforts to promote OSH in sport. Specific areas of joint action could include:

(a) establishing measures for the appropriate treatment of injuries during competitions, including concussion management;

(b) implementing measures for appropriate risk analysis and research, including cooperation with academic and clinical institutions specializing in sports medicine, physical education, and mental health;

(c) reviewing and evaluating sporting discipline rules and practices, equipment and facilities in relation to specific types of injuries;

(d) ensuring that sport training programmes include appropriate training to avoid injury and accidents;

(e) addressing psychosocial risks, including overtraining and online harassment, as integral elements of OSH in sport;

(f) developing emergency preparedness and response protocols for serious incidents, including sudden cardiac arrest, extreme weather events and crowd-related risks;

(g) developing protocols to manage public health crises, including pandemics, ensuring the protection of athletes and others involved in sport through appropriate health measures, risk assessments and contingency planning.

96. Athletes have the right to access universal social protection, which is of particular relevance in sport, where careers and related income and benefits can be cut short suddenly due to injury or illness. In line with international labour standards on social protection, governments should ensure social protection systems are adapted to the specific circumstances of athletes. Governments should enforce, and where necessary review, existing laws and practices, and take steps to ensure access to comprehensive and sustainable social protection coverage for athletes. Such protection should include, as appropriate, benefits for healthcare, sickness, old age, unemployment, employment injury and occupational disease, family and child support, maternity, disability, and survivors in case of death. Social protection should aim to guarantee, at a minimum, the range and levels of benefits set out in the Social Security (Minimum Standards) Convention, 1952 (No. 102), or in other ILO social security Conventions and Recommendations setting out more advanced standards.

97. Athletes can face increased mental health risks related to competition pressure, public scrutiny, risks of abrupt career ends, and violence and harassment. Constituents can address these risks by:

(a) raising awareness among athletes of their OSH rights, including those related to mental health;

(b) providing access to mental health services;

(c) integrating mental health awareness and practices into sports training.

98. Tracking OSH data in sport is a critical step in improving OSH culture. Digital platforms to track the health and safety incidents and workload of athletes can contribute to providing evidence-based measures to reduce risks, with due consideration for protection of data.

99. Rest and recovery periods are central to managing OSH risks. Rest and recovery time, as well as work time (including travel, public relations and other obligations) should be considered as important in managing OSH risks and be established through social dialogue.

100. Doping in sport affects not only the integrity of sport but also poses serious health and safety risks to athletes. Governments and employers' and workers organizations should, through social dialogue, adopt and implement measures to restrict the availability and use of prohibited substances and methods in sport, implement appropriate doping controls, promote anti-doping education and training, and cooperate with relevant international bodies, in line with the International Convention against Doping in Sport, 2005.

101. Any sanctions or penalties aimed at an athlete or athlete support personnel for violations of anti-doping rules or other offences connected with doping in sport should follow principles of due process, including making legal counsel available to accused persons.

102. Climate change and the resulting extreme temperatures and weather conditions can pose specific hazards to athletes. Measures should be developed in relevant sport disciplines to protect athletes' safety in extreme temperatures. Such measures can include:

(a) mandatory additional breaks and competition rescheduling if the wet-bulb globe temperature exceeds specified high temperatures;

(b) mandatory additional breaks and competition rescheduling if temperatures reach specified low temperature degree limits, including regarding wind-chill factors;

(c) the provision of sports equipment and clothing that is adapted to extreme temperatures during training and competition;

(d) the monitoring of hazards related to extreme temperatures and weather, such as avalanches, waves, sudden storms or hail and lightning, and halting of training and competitions as needed.

103. Governments should progressively set up, through social dialogue, national OSH policies, programmes and systems in relation to sport, and promote a national preventative safety and health culture, in accordance with the relevant ILO instruments. Such measures can include:

(a) establishing authorities or bodies responsible for implementing national OSH systems in relation to sport and establish mechanisms of inter-sectoral coordination among authorities and bodies relevant to the sport sector;

(b) establishing and maintaining education and training systems adapted to the needs of the sport sector, with special emphasis on enhancing OSH-related knowledge and skills;

(c) establishing reporting systems for the recording and notification of occupational injuries and diseases and collecting and analysing data, disaggregated by location, type of sport, sex and age, in order to identify and take preventative OSH measures, and progressively developing procedures for recording and notification of occupational accidents and diseases.

104. Employers' and workers' organizations should cooperate to advance the effective implementation of OSH regulations and systems to cover:

(a) OSH policies, which should be specific to types of sport and sports organizations, in line with relevant national, regional and international OSH standards;

(b) responsibility and accountability, competence requirements and training, documentation and record-keeping;

(c) hazard identification and risk assessment;

(d) planning and implementation of OSH controls, including preventative measures;

(e) monitoring, evaluation and continuous improvement of OSH performance;

(f) the establishment of, in consultation with athletes and their representatives, adequate and appropriate systems to conduct, review and, where necessary, update assessments of the risks to the safety and health of athletes;

(g) taking all reasonable and practicable measures to reduce sport-related risks and hazards in sport, or when not possible, control and minimize the risks due to those hazards, taking due account of the hierarchy of controls;

(h) investigating occupational accidents, occupational diseases and, as appropriate, dangerous occurrences related to sport in order to identify their causes and take the necessary measures to prevent recurrence of similar events, in cooperation with OSH committees or workers' representatives, while retaining data related to incidents.

▶ 10. Prevention and elimination of violence and harassment for professional athletes

105. The Violence and Harassment Convention (No. 190) and Recommendation (No. 206), 2019, provide the basis for preventing and eliminating violence and harassment in the world of work, including gender-based violence and harassment, in the sport sector.

106. Athletes are at risk of experiencing various forms of violence and harassment. This risk can originate from different sources in the sporting environment and can occur during games, training, travel and social events, and in digital spaces.

107. Betting, both legal and illegal, has spread across various types of sport, in particular through online platforms. Athletes may face related violence or harassment from organized criminals or individual bettors.

108. More proactive measures are needed to prevent and combat violence and harassment in sport, including gender-based violence and harassment and harassment based on discriminatory grounds. These measures include education, training for sport sector personnel, media campaigns, clear policies on athletes' rights and protection, and joint actions between athletes and sports organizations to signal mutual repudiation of such behaviour.

109. Specific measures can include:

(a) developing and implementing safeguarding policies and procedures, including reporting mechanisms, appropriate remediation and support in consultation with affected persons;

(b) enlisting the visible support of athletes and other prominent figures as role models as part of prevention strategies;

(c) promoting zero tolerance of non-accidental violence against athletes in sport;

(d) improving education and awareness among athletes and athlete support personnel;

(e) improving cooperation and collaboration with sports organizations and other partners to improve the effectiveness of safeguarding policies and procedures.

110. Governments, in consultation with employers' and workers' organizations, should:

(a) ratify and implement Convention No. 190. In countries where ratification has already taken place, social dialogue through tripartite consultations should be prioritized as the mechanism to transpose the Convention into national law. Laws on violence and harassment should promote collective bargaining at national, sectoral, enterprise and workplace levels, while prioritizing national and sectoral agreements;

(b) develop and adopt, through social dialogue, specific legislation and policies to prevent and address violence and harassment ins sport;

(c) regulate and monitor sport-related betting and combating illegal sport betting;

(d) collect and share information and data on incidents of violence and harassment for monitoring and prevention purposes.

111. Employers and their organizations should:

(a) adopt and implement, in consultation with workers and their representatives, a workplace policy on violence and harassment;

(b) include the prevention of violence and harassment in the management of OSH, including by identifying hazards and assessing risks and taking measures to prevent and control them;

(c) provide knowledge sharing opportunities to exchange experiences and good practices on initiatives, strategies and negotiations, including through social dialogue, to promote sport free of violence and harassment;

(d) develop guidance and information materials to promote the integration of joint risk assessments and preventive action on violence and harassment, including third-party violence and harassment, psychosocial risks and gender power inequalities, in OSH policies.

112. Worker's organizations should:

(a) provide membership and workplace training and awareness-raising on all forms of violence and harassment, particularly programmes to address intersecting and multiple forms of discrimination and situations of vulnerability faced by some athletes;

(b) provide guidance, tools and training to help ensure that the prevention of violence and harassment is effectively integrated into OSH policies, including through gender-responsive risk assessment programmes, and take into account risks related to on-line harassment, third-party violence and harassment and risks of domestic violence.

▶ 11. Follow-up to the Guidelines

113. To give effect to these Guidelines, ILO constituents can, with the support of the Office as needed:

(a) through tripartite consultation, develop national and sport-discipline specific policies and plans to implement the Guidelines;

(b) promote the Guidelines with relevant sectoral constituents and actors;

(c) develop capacity-building activities to support constituents in promoting the Guidelines;

(d) develop statistical capacity and national indicators to monitor progress on implementation;

(e) conduct research and document good practices in relation to the Guidelines;

(f) hold regular meetings at national, regional and international level to share good practices, data and experiences.